

Client Services Agreement and Terms of Engagement

Please read these terms and conditions (Terms) carefully. They apply to, and are binding on the appointed Expert, the Legal Representatives, the Applicant/s and Respondent/s in any proceedings (the “Parties”) being either self-represented, or represented by the Legal Representative/s. In addition, both the Expert and the Parties are required to comply with the requirements of Chapter 7 of *the Federal Circuit and Family Court of Australian (Family Law) Rules 2024*.

1. Background

- 1.1 The Expert provides report and opinion to the Court to assist on matters relating to families, mental health, and parenting arrangements during and after parental separation.
- 1.2 At the time of enquiry, the Experts’ administrative support team will provide the current and prospective date availability and professional details of the Expert and these Terms of Engagement to any enquirer.
- 1.3 The Expert only accepts joint instructions from both sets of Legal Representative/s or in the case where a Party or Parties are self-represented, jointly settled instructions.
- 1.4 The Expert and their administrative support team strive to provide the Court, or Parties with timely and independent expert medical opinion with the highest level of service, diligence and professionalism.

2. Provision of the Services

- 2.1 Legal Representative/s and/or the self-represented person will provide Orders and a joint letter of instruction to the Expert, following which:
 - (a) Prospective report interview date/s or cross examination date/s are held and exclusively reserved for the matter on this date of engagement for Service (“**the lock in date**”) defined specifically and recorded as the date the Orders are provided to The Experts’ administrative support team and/or the date on the Joint Letter of Instruction provided to the Expert office, whichever is sooner.
 - (b) Fee obligations to the parties will apply to any change to the prospective report interview date/s as a reschedule or cancellation after the lock-in date and the Expert will rely on Section 4 of these terms.
- 2.2 If there are no orders of a Court to appoint the Expert, a privately requested report may be accepted at the Experts’ discretion, subject to revision of the joint letter of instruction and acceptance of these Terms.
- 2.3 Each Legal Representative warrants that they have obtained the relevant approval and consent of the Parties for:
 - (a) The Experts’ administrative support team to provide information on Services as appropriate to them and listed in Sections 11, 13 and 15 of these terms and
 - (b) The respective parties paying the Fees and providing documents in accordance with Orders and/or joint instruction letter; and

- (c) The Experts' administrative support team to provide the report in respect of the Parties to the Court pursuant to Rule 7.04 or to the Parties pursuant to Rule 7.03 of the Rules.

2.4 Each Legal Representative must alert the Parties to the fact that the information provided by the Parties and any family or other examinees, will be used in the production of a psycho-legal report and that the contents of assessments, including interviews and clinical observations, are not private and are not confidential. Legal Representatives must ensure that any child who is to be assessed is advised that what they say during their assessment will be known to others, including parents/caregivers.

2.5 The Experts' administrative support team will provide a Plain Language Statement to a self-represented party and to the Legal Representative/s who must provide a copy to their client.

3. Report Preparation

3.1 In preparing for the report interview/s to progress it is agreed that:

- (a) Interviews may be conducted by telehealth, in person or a combination of both and at the discretion of the Expert;
- (b) Interviews may be conducted at any suitable location to the Expert and the Parties and unless otherwise arranged will be at The Relationspace, 6/67 Castlereagh Street Sydney NSW 2000;
- (c) The use of mobile phones and other electronic devices will not be permitted in any interview (unless for the purpose of using Telehealth software for a Telehealth interview);
- (d) All communications with and between the Expert office and the parties and/or their representatives and vice versa will be jointly copied to all nominated email addresses.

3.2 Things that must happen prior to the Expert commencing preparation:

- (a) A consolidated joint index with a firm due date for the materials to be provided will be requested by the Expert office. Parties are to settle on a jointly prepared and agreed index before any uploads are initiated.
- (b) The consolidated joint index must fully reconcile with the materials provided or the upload may otherwise be rejected wholly.
- (c) The Experts' administrative support team only accepts e-materials provided via the dedicated upload portal <https://therelationspace.com.au/uploads/> and a receipt of upload will be system issued.
- (d) Material provided by email will be rejected unless otherwise flagged as necessary for technical reasons and be redirected to the upload portal. Material provided outside the upper volume limits given in the schedule 18.1(c) will be rejected. Limits are strictly enforced and materials over the upper limits will not be accepted.

- (e) A certain number of pages are included in each report type and these limits are defined in Section 18 (c) of these terms. Any volume of materials outside of the defined limits and – strictly up to the upper volume limit - are called excess materials and excess invoice/s will be issued. These invoice/s must be paid in full before the Expert considers them and any delay in payment of the excess invoice/s may delay the production timeline of the report.
 - (f) Volume limits for materials in reports fully funded by Legal Aid are advised on a case-by-case basis.
 - (g) All Experts require time to prepare the materials in advance of the interviews or giving evidence at cross examination. If the fully reconciled consolidated joint index and all materials are not received, on or before the stated due date, the interviews may be cancelled or rescheduled at the absolute discretion of the Expert and the cancellation, or reschedule, fees set out in the Schedule will apply.
 - (h) Materials provided after the interview will not be accepted other than with the agreement of the Expert. If there are extenuating circumstances and there is material to be uploaded after the interview/s then Section 18 (e) additional fees apply and will be invoiced.
- 3.3 Each Legal Representative acknowledges that the provision, continuation or conclusion of the Services may be disrupted or delayed due to the acts of third Parties that are beyond the reasonable control of The Expert or the Experts' administrative support team. Where this occurs, The Expert will act to rectify this in good faith.
- 3.4 Where any one of the Parties, or the Legal Representative, does not provide reasonable assistance to enable the provision of the Services by the Expert, then the Expert is entitled to cancel the engagement. Cancellation fees will apply or any applicable refund to the Parties may be affected.
- 3.5 Where there is reasonable justification on the part of the Expert (for example a conflict of interest, unresolved criminal proceedings against a Party and/or related to parenting, fear for personal safety) the Parties agree that The Expert may (at any time and whether or not the Expert knew or ought to have known of the issue previously) decline to supply any of the Services or decline to continue to supply those Services or decline to accept any Engagement from the Legal Representative even after Orders have been made or a joint letter of instruction has been accepted.
- 3.6 The Legal Representative acknowledges and accepts that in respect of any medical or other health care report and related advices provided to the Legal Representative, this is provided on an 'as is' basis and is at least partly based upon information provided by the Legal Representative and/or the Parties or examinees, as a consequence of which The Expert is not responsible for incorrect, incomplete or otherwise false information provided by the Legal Representative, the Parties, or any one of them, or an Examinee to The Expert which leads to any unsatisfactory conclusion.
- 4. Payment of Fees**
- 4.1 The Parties agree to the fees including for reschedule and cancellation as set out in the Schedule.

- 4.2 The Expert will provide the Legal Representatives/Parties with an invoice in accordance with the Orders and/or according to Services selected / sought / jointly agreed. An invoice for payment will be directed to the client by name and care of the Legal Representative. If represented, the Legal Representative and/or their respective clients must pay all fees by the due date and within these Terms specified, self-represented Parties must also ensure fees are paid by the due date and within these Terms specified.
- 4.3 If, after the lock-in date, the Court, a Party, the Parties or the Expert (in accordance with Section 3.5 of these Terms) cancels or reschedules an appointment, a cancellation or reschedule fee as set out in the Schedule will apply.
- (a) If, after the lock-in date a matter is cancelled by the parties, a party or the Court by further Orders:
- (i) Where one or both Parties have fully paid the Expert for the Service, the cancellation fee owing will be retained by The Expert in whole or in equal shares. The Expert will then pay the balance of fee remaining (if any) back to one Party if they paid the whole amount or to the Parties individually if they paid separately and to their given nominated account/s.
 - (ii) Where one Party alone has paid their share of costs for the Service and the other has not paid their share of the cost for the Service, then The Expert retains the stated cancellation fee owing to them in accordance with the Schedule, from the share of costs paid by the one Party, and the balance of fees paid (if any) will be paid back to that Party individually and to their nominated account.
 - (iii) Where neither Party has paid The Expert for the Service and having an exclusively held and reserved date at lock-in and the Parties seek to cancel the date, any future or subsequent request for the Service with the same or any other panel Expert at The Relationspace will be treated as a reschedule and reschedule fees will apply according to whether it is a long form or a short form report.
- (b) If, after the lock-in date a matter is rescheduled by a party or by Parties or the Expert (in accordance with Sections 3.2(g) and/or Section 3.5 of these Terms) then:
- (i) The reschedule invoice/s for fee/s will be paid in accordance with any order if there is an order or to each party separately or to one party;
 - (ii) If the Parties cannot agree to pay for, secure or attend the rescheduled appointment then no further appointment will be made, the Services will be cancelled and 4.3(a) applies.
5. **Update report fees:** an update to a report can occur only if it was a long form Single Expert Report and must be jointly instructed for an update within 18 months of the original interview date. If a request for update report is over 18 months since the original report, a new report at the standard rate would be required. A sliding scale of fees applies depending on the time between the original and updating interview dates as given in Section 17 of these terms.

6. **Addendum report fees:** An addendum to a report can occur only if it was a long form Single Expert Report and must be jointly instructed for an addendum within 3 months of the original interview date. An addendum offers a top-up opportunity for consideration of new materials, reports, results or information and is based only on written information. Fixed rate costs given in Section 18 of these terms where a quotation will be provided on an estimate of time needed depending on factors such as the volume of materials, terms of reference and sought production timeline.

7. **Disclaimer**

- 7.1 To the extent permitted by law, if The Expert becomes liable to a Party and/or to the Legal Representative in any manner whatsoever for breach of warranty or in relation to the supply of any Services, then The Experts' liability will be limited solely to the price paid for such Services or the cost of their resupply, whichever The Expert determines.

8. **Form of Report**

- 8.1 Expert reports will comply with Rule 7.21 of the Federal Circuit and Family Court of Australia (Family Law) Rules 2024.

9. **Definitions**

Engagement Any engagement of The Expert for any of the Services.

Expert A doctor or other expert health care professional, who is engaged to provide any Services.

Fees The fees payable by a Party or by the Parties or the Legal Representative/s on behalf of their client/s for the provision of the Services, including any applicable charges relating to the cancellation or rescheduling of appointments.

Lock in date: is the date the Orders and/or Joint letter of instruction are provided to Experts' administration support team and this is the date on which reschedule or cancellation fees apply to any change to the exclusive reservation of a date and in accordance with these terms.

Legal representative Any Legal Representative who is named in Orders and/or in the joint letter of instruction.

Party A person who is represented by a Legal Representative, or is otherwise self-represented, and is participating in family law proceedings/the report matter.

Report A written opinion of a matter as requested jointly by the Parties and/or by Orders.

Report – Updating A joint request and/by Orders for revision of new materials, updating interviews and collateral information from other treating professionals in a matter that has previously had a full family report. Update reports are not available for short form reports. There is a sliding fee scale with an amount deducted off the report base price depending on the time between the original interview date/s and the updating interviews date/s.

Report – Addendum A joint request and/by Orders for revision and consideration of new materials, reports, results or information where a paper addendum/supplementary report is

added based only on the paper information. Costs for these reports are on a case-by-case basis depending on volume of materials, terms of reference and production timeline.

Session: Refers to a time period for exclusive use of parties in Expert diary, being defined as either 10am-1pm (“morning session”) or 2pm-5pm (“afternoon” session). Each session is 3 hours, even if the only part of a session/block is used, the reservation fee is applied to the full session.

Services Any services provided by The Expert to a Party, the Parties, a Legal Representative or the Court, including, without limitation, the provision of medical reports, health care or related advice, medical consultation services, expert opinions, expert witness services and any associated health care management services.

10. Our Commitment to You

- 10.1 The Expert and the Experts’ administrative support team perform their duties with due care, competence and diligence. We will act ethically and in accordance with relevant professional codes at all times.

SCHEDULE OF FEES

11. Single Expert Report fee schedule – full family report

11.1 This schedule refers to a full and comprehensive family report, and the stated fee below includes interviews for up to 4 persons and material up to 1000 pages. Excess charges apply for volume limits over 1000 pages and – strictly up to the upper volume limit - or additional interviews if requested by the parties and agreed to by The Expert. These reports include mental health assessments of all examinees.

Expert	Qualification	SER + GST	CIA	SIA	PAR	MHA
Dr Catherine Boland	Clinical Psychologist & Principal	\$26,000				
Dr Jacques Claassen	Forensic Consultant Psychiatrist	\$25,000			✓	
Dr Yumna Dhansay	Forensic Consultant Psychiatrist				✓	
Dr Antonio Simonelli	Forensic Consultant Psychiatrist	\$24,000			✓	
Dr Joel Singer	Psychiatrist				✓	
Dr M. Emmett Maher	Clinical Psychologist	\$22,000	✓	✓		✓
Fiona Darroch	Clinical Psychologist	\$20,000				
Kalli Tsiotsioras	Clinical Psychologist	\$20,000	✓	✓		✓
Dr Latika Sadashiv	Clinical Psychologist	\$19,000	✓	✓		✓
Dr Monique Phipps	Clinical Psychologist	\$19,000	✓	✓		✓
Dr Rebekah Hedges	Clinical Psychologist	\$18,000	✓	✓		✓
Dr Natasha Dafo	Clinical Psychologist	\$18,000	✓	✓		✓
Dr Rickie Elliott	Clinical Psychologist	\$17,000	✓	✓		✓
Laura Francke	Clinical Psychologist	\$17,000	✓	✓		✓
Dr Fiona Martin	Edu. & Dev. Psychologist	\$16,000	✓	✓		
Rachel Brace	Registered Psychologist	\$16,000	✓	✓		
Paul Lodge	Social Worker	\$16,000	✓	✓		
Brett Haddon	Social Worker	\$15,000	✓	✓		
Drew Cowen	Registered Psychologist	\$15,000	✓	✓		
Terri Kelly	Registered Psychologist	\$15,000	✓	✓		
Dr Heather Gan	Clinical Psychologist	\$14,000	✓	✓		✓

12. Reschedule and Cancellation fees for full report

12.1 After the lock-in date, cancellation fees apply where full family report is cancelled or rescheduled within given notice periods as defined:

Notice period provided	Reschedule	Cancellation
50 days or more notice period	Nil retained - no additional fees apply to offer a new date	Nil retained - full refund provided
29 – 49 days' notice period	\$1900 + GST to be paid prior to the offer of a new date	\$2900 + GST retained, the balance refunded
15 - 28 days' notice period	\$2900 + GST to be paid prior to the offer of a new date	\$3900 + GST retained, the balance refunded
8 - 14 days' notice period	\$3900 + GST to be paid prior to the offer of a new date	\$5900 + GST retained, the balance refunded
7 days or less (or no show) notice period	\$4900 + GST to be paid prior to the offer of a new date	Half fees + GST retained, the balance refunded

13. Single Expert Report fee schedule – Short format reports

13.1 Child Impact Assessment (CIA): \$5,500 + GST as a fixed and flat fee which includes interviews for up to 4 persons and material up to 100 total combined pages. Upper volume limit applies. Subpoena materials are not accepted.

13.2 Specific Issues Assessment (SIA): \$7,700 + GST as a fixed and flat fee which includes interviews for up to 4 persons and material up to 200 total combined pages. Upper volume limit applies. Limited subpoena material is accepted.

13.3 Educational and Developmental Assessment (EDA): \$6,600 + GST or **Mental Health Assessment of Child (by Educational and Developmental Psychologist):** \$6,600 + GST both as a fixed and flat fee which includes intake and follow up interviews for each parent and testing and assessment of the subject child with collateral contact with other treating professionals at the discretion of the Expert. Material up to 200 pages is accepted. Upper volume limit applies.

13.4 Parenting Capacity, Risk and Mental Health Assessment (MHA for 1 person): \$7,500 + GST as a fixed and flat fee which includes interview of one adult, material up to 500 pages and upper volume limit applies. and collateral contact with other treating professionals at the discretion of the Expert.

13.5 Psychiatric Assessment Report (PAR for 1 person): \$7,200 + GST as a fixed and flat fee which includes interview of one adult, material up to 500 pages and upper volume limit applies. Collateral contact with other treating professionals at the discretion of the Expert. Should two adult parties/parents in the same matter wish to book a PAR or PAR/PC, a \$1,000 + GST discount applies to the total cost of the two reports.

13.6 Psychiatric Assessment Report & Parental Capacity (PAR/PC for 1 person): \$8,000 + GST as a fixed and flat fee which includes interview of one adult, material up to 500 pages and upper volume limit applies. Collateral contact with other treating professionals at the discretion of the Expert. Should two adult parties/parents in the same matter wish to book a PAR or PAR/PC, a \$1,000 + GST discount applies to the total cost of the two reports.

14. Reschedule and cancellation costs for short form report

14.1 After the lock-in date, if the reserved date is moved or cancelled by a party or the parties and for any reason then a fee applies to reschedule or cancel the booking. A new date is provided once any issue invoice/s have been paid in full.

(a) Reschedule (new date needed) of a short form report: \$1900 + GST per matter (\$950 + GST per party applies);

(b) Cancellation (no report proceeding) of any short form report: \$3300 + GST per matter (\$1650 + GST per party applies if the report fee is retained with balance refunded).

15. Fee schedule - Cross Examination of the Expert

15.1 After the lock-in date, invoice/s are issued to reserve a date exclusively for the trial date sought. Payment of the invoice/s then confirms the exclusive reservation of a specific time period in the Expert diary, being defined as either 10am-1pm ("morning session") or 2pm-5pm

("afternoon" session). Each session is 3 hours, even if the only part of this time is used, the reservation is for the full session. If a full day is sought parties must reserve both the morning and the afternoon session.

- 15.2 No further fee is required for the Expert to attend Court either in person or via audio-visual link to give evidence.
- 15.3 No further fee is required for the Expert time required to prepare for their evidence. The Expert will accept up to 200 pages of jointly agreed updating materials in the reservation fee. Excess charges apply for volume limits over 200 pages.
- 15.4 The cost to reserve either a morning or an afternoon session for Expert evidence is \$4200 + GST. Invoices can be issued in 2 equal shares of \$2100 + GST to each party. A full day is \$7400 + GST, being a \$1,000 + GST discount applied to the total cost of the two sessions.

16. Reschedule and cancellation costs for cross examination

- 16.1 After the lock-in date has passed, and the held cross examination session/s is moved or cancelled by a party or the parties or the Court, and for any reason, then a fee applies to reschedule or cancel the booking. A new reservation of time date is provided once any issue invoice/s have been paid in full.

- (a) Reschedule (new date needed) for cross examination e.g. due to adjournment: \$1500 + GST per matter (\$750 + GST per party applies);
- (b) Cancellation (trial not proceeding) for cross examination e.g. due to settlement:

Notice period provided	Cancellation
30 days or more notice period	Nil retained - full refund provided
15 - 29 days' notice period	\$1900 + GST retained, the balance refunded
8 - 14 days' notice period	\$2900 + GST retained, the balance refunded
7 days or less notice period	Nil refunded

17. Updating Reports

- 17.1 A sliding scale of fees applies depending on the time between the original and updating interview dates:
- (a) From 1 to 6 months between interview dates is a \$10k + GST reduction off the full report cost;
- (b) From 6 to 12 months between interview dates is a \$7k + GST reduction off the full report cost;
- (c) From 12 to 18 months between interview dates is a \$5k + GST reduction off the full report cost.

18. Single Expert Report fee schedule – Additional fees

18.1 The table of additional fees covers scenarios such as travel, fast-track of production, excess and/or late arriving materials, additional interviews and clarifications sought under the Rules.

(a) Travel costs to other locations.	\$1600 + GST per Party is a flat fee to cover the Expert travel time, travel costs, accommodation and professional rooms.
(b) Fast track fee: Expediated production of any report type to meet a deadline, subject to Experts' agreement to the fast-track date	\$3000 + GST
(c) Material volume limits apply for reports being the total combined page count of all uploads as follows: Full family report: 1000 pages included Psychiatric Assessment: 500 pages included Mental Health Assessment: 500 pages included Specific Issues Assessment: 200 pages included Cross Examination: 200 pages included Educational & Developmental Assessment: 200 Child Impact Assessment: 100 pages included For reviewing excess materials for reports over volume limits; excluding cross examination excess.	Volumes to the limits indicated are included in the report cost. Up to 2500 pages only accepted as excess Up to 1500 pages only accepted as excess Up to 1500 pages only accepted as excess Up to 300 pages only accepted as excess Up to 1500 pages only accepted as excess* Up to 300 pages only accepted as excess Up to 200 pages only accepted as excess \$270 + GST for each 50 pages in excess of the prescribed amount.
* (d) For reviewing excess materials for cross examination over volume limits	\$450 + GST for each 50 pages in excess of the prescribed amount.
(e) When accepted under extenuating circumstances, late arriving materials provided after the interviews, regardless of whether in excess or not.	\$450 + GST for each 50 pages.
(f) For additional or follow up interviews initiated by the Expert <i>if required as a result of late arriving materials</i> .	\$450 + GST per hour.
(g) Reading and preparing materials for addendum report Writing/producing of the addendum report	Materials/reading \$270 + GST for each 50 pages Writing/producing \$450 + GST per hour
(h) If clarification about a report is sought under the Chapter rules for a conference under rule 7.25 or by means of questions under rule 7.26.	\$270 + GST per hour.
(i) For a 5 th and subsequent person to be interviewed.	\$900 + GST per person to be interviewed for a Single Expert report and \$500 + GST per person to be interviewed for any short form report.

